52.212-2 Evaluation-Commercial Products and Commercial Services. (Deviation 2026-O0038) (Tailored) (Feb 2026)

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

1. Technical (Technical Approach, Experience & Personnel Qualifications/ Resume, Management and Quality Approach, Transition-in and Address CTAs, Prime-Subcontractor Arrangements or Joint Ventures (if applicable));

2. Price

Factor 1, (Technical Approach, Experience & Personnel Qualifications/ Resume, Management and Quality Approach, Transition-in and Address CTAs, Prime-Subcontractor Arrangements or Joint Ventures (if applicable)

Factor 2, Price (Total price for the base, all options and potential extension of services IAW FAR 52.217-8) must be determined "Fair and Reasonable".

Relative Importance of Factors: The evaluation factors above are in descending order of importance. Sub-Factor 1-Technical (Technical Approach) will be assigned an evaluated adjectival rating of either Outstanding, Good, Acceptable, Marginal, or Unacceptable. Experience & Personnel Qualifications/ Resume, Management and Quality Approach, Transition-in and Address CTAs, Prime-Subcontractor Arrangements or Joint Ventures Sub factors will be evaluated utilizing the Acceptable or Unacceptable Technical Approach Ratings. The overall Factor 1 rating will correlate to the sub-factor 1 rating if no unacceptable rating is received in the remaining sub-factors.

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

52.212-2 EVALUATION--COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)

1. BASIS FOR AWARD:

(a) Pursuant to FAR Parts 8.4, The Government intends to award a competitive firm fixed price task order without discussions. Offerors shall provide their best, complete proposal upon initial submission. The Government reserves the right to hold discussions if deemed necessary. A Source Selection Evaluation Board (SSEB) will be formed and tasked to evaluate all proposals based on the materials and documentation provided by offerors. The evaluations will be based on the evaluation criteria set forth below.

(b) Consideration for Award. To receive consideration for award: 1) a rating no less than "Acceptable" must be received for Technical (Factor 1) which includes Technical Approach, Experience & Personnel Qualifications/ Resume, Management Approach, Transition-in and Address CTAs, Prime-Subcontractor Arrangements or Joint Ventures (if applicable); the Total Evaluated Price (TEP) must be determined "Fair and Reasonable" for Price (Factor 2).

Award will be made to the offeror who proposes the Best Value. Best value will be determined by Trading off Technical against Price for all Technically Acceptable offers, with Technical being more Important than Price.

(c) Proposals evaluated with the Total Evaluated Price (TEP) determined to be "Not Fair and Reasonable" are INELIGIBLE for award and will NOT be further considered. Proposals that receive a rating of Unacceptable in any Technical sub-factor renders Factor 1 Unacceptable and the proposal will be ineligible for award. Proposals with an overall Factor 1 rating of less than “Acceptable” will be ineligible for award. A single award will be made to the responsible quoter whose quote is determined to represent the best overall value to the Government based on an integrated assessment of all evaluation factors.

2. EVALUATION APPROACH:

Evaluation Approach:

2.1. Technical (Non-Price) Proposal Part 1: The following criteria will be used to evaluate the Technical (Non-Price) aspects of the proposal. Technical (Non-Price) Proposal Part 1 contains:

Factor 1- Technical Approach

Factor 1 - Technical Sub factors:

1. Technical Approach
2. Experience & Personnel Qualifications/ Resume
3. Management and Quality Approach
4. Transition-in
5. Address CTAs, Prime-Subcontractor Arrangements or Joint Ventures (if applicable)

2.1.1 Part 1 Technical (Non-Price) Proposal: Quoter's technical submission volume shall address 5 elements of Technical Factor 1: (Technical approach, Experience & Personnel Qualifications/ Resume, Management Approach, Transition-in, and Address CTAs, Prime-Subcontractor Arrangements or Joint Ventures (if applicable).

The following criteria will be used to evaluate the technical submissions in accordance with the definitions in the charts below. The Offeror shall submit a written technical offer which effectively demonstrates the Offeror understands the requirements of the Performance Work Statement (PWS) and provides a successful technical solution for the prospective task order. The offer shall not simply rephrase or restate the Government's requirements but rather shall provide convincing rationale to demonstrate how the Offeror intends to meet these requirements.

2.1.1.1 The evaluation process for the Technical (Non-Price) Part, will consider the following elements:

1) Understanding of the Problem - The offer will be evaluated to determine the extent to which it demonstrates a clear understanding of all tasks involved in solving the meeting the deliverables and/or exceeding the requirements presented in the PWS and the extent to which uncertainties are identified and resolutions proposed.

2) Feasibility of Approach - The offer will be evaluated to determine the extent to which the proposed approach to address the requirements presented in PWS is adequate and the end results achievable for the requiring activity. Risk associated with the approach will also be considered in this element. The offer will be evaluated to determine the level of confidence provided the Government with respect to the offeror's methods and approach in successfully meeting and/or exceeding the requirements of PWS in a timely manner.

3) Completeness - The offer will be evaluated to determine whether the offeror's methods and approach have adequately and completely considered, defined, and satisfied the requirements specified in PWS. The offer will be evaluated to determine the extent to which each identified requirement of PWS has been addressed (i.e., met and/or exceeded) in accordance with the offer submission instructions of the solicitation.

2.1.1.2. Rating Method for Factor 1 – and Sub-Factor 1

TECHNICAL APPROACH RATINGS	
Rating	Description
Outstanding	Offer meets requirements and indicates an exceptional approach and understanding of the requirements. Strengths far outweigh any weaknesses. Risk of unsuccessful performance is very low.
Good	Offer meets requirements and indicates a thorough approach and understanding of the requirements. Offer contains at least one strength which outweigh any weaknesses. Risk of unsuccessful performance is low.
Acceptable	Offer meets requirements and indicates an adequate approach and understanding of the requirements. Strengths and weaknesses are offsetting or will have little or no impact on contract performance. Risk of unsuccessful performance is no worse than moderate.
Marginal	Offer does not clearly meet requirements and has not demonstrated an adequate approach and understanding of the requirements. The offer has one or more weaknesses which are not offset by strengths and/or risk of unsuccessful performance is high.
Unacceptable	Offer does not meet requirements and contains one or more deficiencies. Offer is un-awardable.

2.1.1.3. The technical rating reflects the degree to which the proposed approach meets or does not meet the minimum performance or capability requirements, based on the table listed below, with consideration of the understanding of the problem, feasibility of the approach, and completeness of a technical offer, and through an assessment of the strengths, weaknesses, risks and deficiencies of a technical offer.

2.1.1.4. The one element under Factor 1 – Sub-Factor 1 Technical Approach, shall be evaluated for Strength(s), Weakness(es), Risk(s), and Deficiency:

- **Strength** is an aspect of an offeror's proposal that has merit or exceeds specified performance or capability requirements in a way that will be advantageous to the Government during contract performance.

- **Weakness** means a flaw in the proposal that increases the risk of unsuccessful contract performance.

-**Significant Weakness** means a flaw in the proposal that increases the risk of unsuccessful performance.

- **Risk** is manifested by the identification of weakness(es), considers potential for disruption of schedule, increased costs, degradation of performance, the need for increased Government oversight, and/or the likelihood of unsuccessful contract performance.

- **Deficiency** is where a material failure of a proposal to meet a Government requirement or a combination of weaknesses in a proposal increases the risk of unsuccessful contract performance to an unacceptable level. A proposal is INELIGIBLE for award if one or more "Deficiency(ies)" are found in any Sub-factor.

-**Meets** means the offeror’s proposal demonstrates their understanding of the requirement.

2.1.2 The Government will utilize and consider these elements (Understanding of the Problem, Feasibility of Approach and Completeness) as a whole and provide one rating for each of the remaining subfactors under Factor 1 Technical:

2.1.2.1 Experience & Personnel Qualifications/ Resume (Acceptable/Unacceptable rating) - The Government will evaluate the items specified in the Instructions to Offerors. The Government will also evaluate the quoter's approach, including its staffing structure and proposed level of effort, providing personnel with the most recent, quality, and depth of experience to accomplish the requirements of the PWS. All personnel must possess the minimum qualifications set forth in the PWS. If certification requirements IAW PWS 6.1.1.5 and 6.1.6.3 are not fully met, a plan on how these requirements will be met prior to the start of work must be provided.

2.1.2.2 Management and Quality Approach (Acceptable/Unacceptable rating) - The Government will evaluate the item specified in the Instructions to Offerors as specified in the 52.212-1 Management Approach and Quality Approach table. This evaluation includes a review of the quoter's approach to recruitment and retention of qualified personnel.

2.1.2.3 Transition-in (Acceptable/Unacceptable rating) –The Government will evaluate the offeror's transition-in approach to meet all contract requirements and ensure incoming personnel are functionally trained and qualified on the full performance start date except cybersecurity requirements which must be fully adhered during transition and full performance periods. As applicable, the Government will also evaluate the offeror's approach to coordinating, directing, and managing its subcontractors or joint venture partners.

2.1.2.4 Address CTAs, Prime-Subcontractor Arrangements or Joint Ventures (if applicable). (Acceptable/Unacceptable rating) - The Government will evaluate as indicated in 52. 212-1.

2.1.2.5 Rating Method for Factor 1- Technical Subfactors two through five: (Experience & Personnel Qualifications/ Resume, Management Approach, Transition-in, and Address CTAs, Prime-Subcontractor Arrangements or Joint Ventures (if applicable))

Adjectival Rating	Description
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements is acceptable.
Unacceptable	Proposal does not meet requirements of the solicitation and/or risk of unsuccessful performance is unacceptable. Proposal is unawardable.

The following will be used in assessing Acceptable/Unacceptable for sub-factors two through five:

Weakness means a flaw in the proposal that increases the risk of unsuccessful contract performance.

Significant Weakness in the proposal is a flaw that appreciably increases the risk of unsuccessful contract performance.

Deficiency is a material failure of a proposal to meet a government requirement or a combination of weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level.

Meets means the offeror’s proposal demonstrates their understanding of the requirement**.**

- **Risk is manifested by the identification of weakness(es), considers potential for disruption of schedule, increased costs, degradation of performance, the need for increased Government oversight, and/or the likelihood of unsuccessful contract performance.**

2.1.3 Part 3 Price: Factor 2 Price: The price proposal will be evaluated to ensure all required information is provided, complete, reasonable, and accurate. The Government will verify the mathematical calculation provided by the offeror and will adjust the offeror's total overall evaluated price if mathematical errors are noted. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options shall not obligate the Government to exercise the option(s). The Government will determine price reasonableness by comparison of the proposed price to the market price derived from market research or from adequate price competition. To establish a fair and reasonable price, the Government shall obtain any data as necessary.

(End of Addendum)